

Court No. - 3

Case :- WRIT - C No. - 8481 of 2024

Petitioner :- Sudhir Kumar Srivastava

Respondent :- State Of U.P. Thru. Prin. Secy. Energy
U.P. Lko. And 3 Others

Counsel for Petitioner :- Umesh Kumar Srivastava

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Brij Raj Singh,J.

Heard learned counsel for the petitioner,learned Standing Counsel for the State-respondents and Ms. Aprajita Bansal, learned counsel appearing on behalf of opposite parties no. 2 to 4/ Madhyanchal Vidut Vitran Nigam Limited, Lucknow.

This petition has been filed with the following main prayers:-

"1. A writ, order or direction in the nature of certiorari commanding the opposite parties to quash the electricity bill dated 05.09.2024 of Rs. 68,069/- contained as in Annexure No-1.

2. A writ, order or direction in the nature of mandamus commanding the opposite party no-4/Adhishashi Abhiyanta to adjust the units consumed by petitioner against the excess amount of Rs. 74,599/- lying with the opposite parties."

It is the case of the petitioner that the petitioner has domestic electricity connection at his residence 510, Uphar Expandable, Eldeco Colony, Udyan-II, Raibareli Road, Lucknow. He had taken this connection on 27.02.2000 of 8 Kilowatts. He has been paying his electricity bills regularly. He has also got installed Solar Panel. The adjustment with regard to unit consumed by

the petitioner had also been done from time to time by the Power Corporation. He deposited electricity bill of February of Rs. 1490/- on 21.03.2024. Thereafter the respondent did not sent any bill for the months March, April, May, June and July, 2024. When the petitioner asked at the Billing Counter, it was informed that bill has not been sent so far because excess amount Rs. 74,599/- of the petitioner which is lying with the electricity department because the electricity which left after using by the petitioner is purchased by the opposite parties. Thereafter the petitioner received a bill on 17.08.2024 of Rs. - 23131/- which shows that at least 17.08.2024 Rs. 23131/- was still lying with the opposite parties . However, on 05.09. 2024 the petitioner has received a bill of Rs. 68,069/- showing an arrears of an amount of Rs.57,529/-. The current bill shown is of Rs. 10540/- making the total Rs.68,069/-. It has been submitted that such bill has obviously been generated by mistake and the petitioner has made an application on 10.09.2024 to the opposite party no.4/ Executive Engineer to correct the bill dated 05.09.2024 but nothing has been done, hence this petition has been filed.

Learned counsel appearing for the respondents has pointed out on the basis of instructions, that earlier bill that was generated showing Rs. -23131/- was by mistake by the computer and the correct bill shows that the petitioner to pay Rs.68,069/- adjusting the arrears also therein.

It has also been submitted that the petitioner can settle the billing dispute under para 6.5 of the Electricity Supply Code.

This writ petition is **disposed of** with the direction to the petitioner to file an application to opposite party no.4 within ten days indicating the misconception of the department with regard to adjustment of the electricity generated on his solar panel. If such a representation/application is made, the opposite party no.4 shall take into account the solar panel installed and the electricity so generated then pass appropriate order in accordance with law within a further period of three weeks thereafter.

For a period of 5 weeks or till a decision is taken by the opposite party no.4/ Executive Engineer whichever is later, no recovery in pursuance of demand notice issued to him shall be enforced against the petitioner.

(Brij Raj Singh, J.) (Sangeeta Chandra, J.)

Order Date :- 30.9.2024

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